Goswami. Even as she was replying, counsel for bar associations, Bawa Gurcharan Singh, asked her to take oath.

The reader asked Mrs Bedi to repeat the oath after him. 'I do not wish to make a statement, your lordship. I beg leave to state that,' Mrs Bedi said.

'Contempt, contempt,' shouted the lawyers. 'She cannot be compelled to take oath,' said Mr Ramaswami.

The judges did not say anything for some time. 'Take a chair,' Justice Wadhwa told Mrs Bedi as he consulted his colleague. 'I am used to standing for long periods,' Mrs Bedi told him.

'Are you advising your client not to take oath?' Justice Wadhwa asked Mr Ramaswami. 'She can be prosecuted for contempt of court'.

Mr Ramaswami told the judges that he only wished to read out an extract from the judgement in the Indira Gandhi case to them. 'After that, your lordships, I will advise her to take oath if you overrule my contention,' he said.

The judgement was read out. Mr Ramaswami said the accused was only being given an opportunity to defend herself. 'You can't force her to take that opportunity without letting us examine their witnesses,' he said. When Justice Wadhwa mentioned the affidavit, Mr Ramaswami said: 'If you are going to get technical, I will be super-technical.'

Mrs Bedi, at this stage, asked if she could state on oath that she would not make any statement. 'That would be tantamount to contempt,' Justice Wadhwa said.

Mr Ramaswami asked him to overrule his plea 'so that we can move higher courts.' 'What further overruling do you want,' Justice Wadhwa said, and served notice on Mrs Bedi to show cause why she should not be hauled up for contempt of court.

(*Indian Express*, 20 May 1988)

It was on this issue that Kiran went on special leave petition before the Supreme Court vacation judge on three counts:

(1) She wanted to know what her status was before the commission of inquiry: was it that of an accused or not?
(2) If she was an accused then did she have the right to defend herself and examine the witnesses before she herself could be cross-examined to know the allegations against her?
(3) She requested that the prosecution that had been launched against her in the court of Chief Metropolitan Magistrate R. L. Chugh be quashed.

Mr Justice K. N. Singh (the vacation judge), before whom her petition was presented, gave relief to her on all counts. In a packed courtroom, the vacation judge also directed the Goswami–Wadhwa Commission to reconsider its decision regarding the order in which the police and the Delhi Bar Association witnesses would be examined.

Later, however, the same matter came before the regular bench comprising Justice E. S. Venkataramiah, Justice M. M. Dutt and Justice N. D. Ojha. They made several observations of great consequence, which led to strong reactions. They ruled that since Kiran Bedi was the sole object of attack by the Bar Association before the commission of inquiry, she was the 'fittest person to come under Section 8 (B) of the Commission of Inquiry Act'. In other words, she should get the rights and privileges of an accused along with its responsibilities. They also quashed the prosecution's contempt